

Visit report: RKY2.01_RobertKett_DPE_Visit.31.10.19 **Time:** 13.30

Staff member: DPE: Stuart Lee. **School:** Karen Hurst

Audit comments

Robert Kett is a large primary school with over 500 students. Prior to the walk, the NCC GDPR audit was talked through and explanations given. Internal data risks were also identified; cleaner and caretaker are parent(s) and the school is used for lettings (Slimming World). Afterschool walks prove useful in identifying if end of day routines/best practice has been imbedded in school. Audit walk findings are detailed below:

HT office:

- **ACTION POINT:** Consider keycode entry due to the type of data that could be within, for example: in-trays containing sensitive data.

AH/SENCO office:

- Drawers unlocked with sensitive data within;
- Care plans in view;
- Psychologist reports on display;
- Children in need information accessible and in view – CPOMS;
- Behaviour reports accessible and in view;
- Speech and Language checklists accessible and in view;
- ADHD clinic referrals accessible and in view;
- Teacher assessments accessible;
- Forest schools and nurture timetable on wall – covered but would be better placed in a folder.

ACTION POINT:

- Remove sensitive data and secure – actioned during visit;
- Set staff member up on the DPE website for e-learning training and ensure this is completed;
- Communicate best practice to staff member (refer to DPE quick reference guide: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds>)

Behaviour support office (next to AH/SENCO office:

- Behaviour checklists with class, name, SEN and PP information.

ACTION POINT: Communicate best practice (DPE quick reference guide) and staff member to complete e-learning training.

Classrooms:

- Class lists with full names and medical/walk home information;

- Parents evening lists (outdated as it was earlier in the week);
- Student lists with SEN data;
- Full names with allergy lists;
- Folders with assessment data, NFER log in details and PP, SEN data.

ACTION POINTS:

- Remove sensitive data and secure;
- Share and communicate the quick reference guide/poster with staff;
- Key staff to complete DPE e-learning training;
- Consider all staff completing DPE e-learning training and/or complete a whole school session via the DPE e-learning platform;
- Complete additional afterschool walks and feedback findings to staff;
- Remove data at risk from folders and store securely (i.e. password information)
- Encourage staff to self-regulate and check own areas regularly.

Kitchen:

Reception list with DOB etc – removed during walk.

Allergy Photo with full name: The school had a serious incident and made the decision to display photo and full name with allergy information. Discussed risks and NORSE kitchens using a folder system. Risks have been assessed by the school and the school has had to consider the safety of students considering the severity of the incident. School can minimise to just forename. School previously used a folder system.

ADVISORY: School to review practice.

Reception office/area (open plan office):

Reception area is open plan so there is a need to be extra vigilant.

ACTION POINT: Reminder to staff to secure sensitive data;

Consider staff completing e-learning training.

Medical room:

Care plans master folder on display.

ADVISORY: Add to cabinet;

Medical room does not lock. Suggested a fob system to improve security.

Item	DPE website training and governance	Follow on actions/comments
1	DPE website and best practice areas	DPE best practice areas, compliance checklists, SLAs and compliance manager discussed/demonstrated with the school (workshop 4 Nov). Recommended the compliance checklist is completed initially. The checklists can be used to record and show GDPR progress to governors and support consultants during visits.

2	Staff training	DPE has e-learning modules that are part of the schools subscription. ● ACTION POINT: ● Rollout to key staff (i.e.SENCO) and then consider all staff either individually, or as part of a whole school session complete the training; ● Add as part of the induction process for new staff; ● Consider the governor responsible for GDPR completing the training; ● Use staff meetings/briefings to raise staff awareness.
3	Governance	School confirmed that GDPR is reported at governor level.
Item	Policy/procedure	Follow on actions/comments
1	ICO registration	School was already registered but did not have DPE as the named DPO. ACTIONED: Supported the school with sending an email to the ICO to register.
2	GDPR data protection policy	COMPLETED.
3	GDPR privacy notice	COMPLETED. ACTION POINT: SL to send Karen amended version (attached) Cluster have a separate staff privacy notice.
4	Breach procedure	COMPLETED. Online DPE Data Breach log demonstrated to the school. Explanation provided for new heading on Data Breach notification – Breaches received School uses GDPRiS to record data breaches and will decide whether to continue or use the DPE log (school now uses the DPE log – Nov 19).
5	SAR procedure and log	COMPLETED. DPE online SAR log demonstrated. ACTION POINT: School to check that key staff understand the procedure.
6	FOI Policy and publication scheme	ADVISORY: School to check if it has a publication scheme (guidance attached): https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf Example of a school publication scheme: http://d6vsczyu1rky0.cloudfront.net/38206_b/wp-content/uploads/2018/05/Freedom-of-Information-publication-scheme-2018-template-V32017.pdf School has a FOI policy.
7	Retention schedule and safe destruction of data	Governor hub annual review of school data and safe data destruction checklist and IRMS toolkit documentation discussed with the school. School can continue to check and record against data stored in school. The DPE record of processing tool will also include lawful basis for processing, risk and data retention. Guidance can be obtained from the DfE and IRMS toolkits:

		https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016 IRMS Toolkit for Schools v5 Master.pdf https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data Protection Toolkit for Schools OpenBeta.pdf (Annex 5.1)
		School has a secure archive room.
8	Additional advisory documentation	School signposted to the best practice compliance checklist and following advisory recommended documentation: • Records management • Information classification • Consent guidance • Clear desk and Screen • Work away from school • Password policy • FOI policy
9	DPIA	Discussed when one would be needed i.e. CPOMS. DPE will be providing additional documentation on the Knowledge Bank. Risk management is also incorporated within the Record of Processing tool. Prior to any significant change to working practices a DPIA should be completed. DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. Example DPIA template: https://ico.org.uk/media/about-the-ico/consultations/2258461/dpia-template-v04-post-comms-review-20180308.pdf
Item	Data mapping	Follow on actions/comments
1	Data mapping to support the Record of Processing (RoP) tool	As the DPE Record of Processing tool is being launched shortly, the school will wait for this to start data mapping and for record management. DPE have provided around 100 generic processes that can be mapped for each school with appropriate sub-processors. Prior to any significant change to working practices a DPIA should be completed. DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice Demonstrated during the 4 November workshop. Also recognised in the NCC audit as an action point. Additional data mapping guidance can be obtained from the DfE toolkit: https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data Protection Toolkit for Schools OpenBeta.pdf

		IT Provider details: Shared technician with Ashley also buy in basic package with ICT shared solutions MIS Provider: ScholarPack
Item	Technical measures	Follow on actions/comments
1	Website	School to complete checks and cleanse to remove any old photos of leavers from the school website.
2	Servers/Cloud and backups	Server is secured in a dedicated server room. School uses Google Drive. School data is backed up to the cloud. ADVISORY: School completes a data cleanse but concerned that there is limited control. School can develop documented procedures for staff.
3	Cyber essentials	Document downloaded during visit. ACTION POINT: Recommend IT provider completes.
4	Laptops and mobile devices	ADVISORY: School to check with IT provider encryption of laptops; School to check procedures for Tablets/iPads as lost devices are regularly being reported to DPE. Is Erase your device activated for iPads?
Item	Personal data	Consent obtained
1	Pupil photographs	Latest DPE guidance documents discussed with the school.
2	Staff photographs	Latest DPE guidance documents discussed with the school.